

## Opinion of the Court

not juries, ordinarily construed written documents.<sup>7</sup> The probability that the judges were doing the same thing in the patent litigation of the time is confirmed by the fact that as soon as the English reports did begin to describe the construction of patent documents, they show the judges construing the terms of the specifications. See *Bovill v. Moore*, Dav. Pat. Cas. 361, 399, 404 (C. P. 1816) (judge submits question of novelty to the jury only after explaining some of the language and “stat[ing] in what terms the specification runs”); cf. *Russell v. Cowley & Dixon*, Webs. Pat. Cas. 457, 467–470 (Exch. 1834) (construing the terms of the specification in reviewing a verdict); *Haworth v. Hardcastle*, Webs. Pat. Cas. 480, 484–485 (1834) (same). This evidence is in fact buttressed by cases from this Court; when they first reveal actual practice, the practice revealed is of the judge construing the patent. See, e.g., *Winans v. New York & Erie R. Co.*, 21 How. 88, 100 (1859); *Winans v. Denmead*, 15 How. 330, 338 (1854); *Hogg v. Emerson*, 6 How. 437, 484 (1848); cf. *Parker v. Hulme*, 18 F. Cas. 1138 (No. 10,740) (CC ED Pa. 1849). These indications of our patent practice are the more impressive for being all of a piece with what we know about the analogous contemporary practice of inter-

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<sup>7</sup> See, e.g., Devlin, *Jury Trial of Complex Cases: English Practice at the Time of the Seventh Amendment*, 80 Colum. L. Rev. 43, 75 (1980); Weiner, *The Civil Jury Trial and the Law-Fact Distinction*, 54 Calif. L. Rev. 1867, 1932 (1966). For example, one historian observed that it was generally the practice of judges in the late 18th century “to keep the construction of writings out of the jury’s hands and reserve it for themselves,” a “safeguard” designed to prevent a jury from “constru[ing] or refin[ing] it at pleasure.” 9 J. Wigmore, *Evidence* §2461, p. 194 (J. Chadbourn rev. ed. 1981) (emphasis in original; internal quotation marks omitted). The absence of any established practice supporting Markman’s view is also shown by the disagreement between Justices Willis and Buller, reported in *Macbeath v. Haldimand*, 1 T. R. 173, 180–182, 99 Eng. Rep. 1036, 1040–1041 (K. B. 1786), as to whether juries could ever construe written documents when their meaning was disputed.